

		Applying the above hourly rates and eliminating entries for duplicative, excessive and/or unnecessary work, the following hours and rates are reasonable: <table><tr><th>Timekeeper</th><th>Hourly Rate</th><th>Time Claimed</th><th>Time Granted</th><th>Total</th></tr><tr><td>Michael Saeediann</td><td>\$695</td><td>1.5</td><td>0.9</td><td>625.5</td></tr><tr><td>Christopher Urner</td><td>\$525</td><td>24.8</td><td>16.8</td><td>8820</td></tr><tr><td>Jorge L. Acosta</td><td>\$350</td><td>12.1</td><td>8.5</td><td>2975</td></tr><tr><td>Sergio Aivazov</td><td>\$300</td><td>10.8</td><td>9.5</td><td>2850</td></tr><tr><td>Jorge L. Acosta (law clerk rate)</td><td>\$100</td><td>0.8</td><td>0.7</td><td>70</td></tr><tr><td>Total</td><td></td><td></td><td></td><td>\$15,340.5</td></tr></table> The Court declines to apply a positive or negative multiplier to this case. Plaintiff filed a memorandum of costs claiming \$924.58 in costs. Defendant does not dispute the request for costs. Plaintiff’s requests for costs of \$924.58 is granted. Plaintiff to give notice. <u>Order to Show Cause re: Dismissal on Settled Case</u> The Order to Show Cause re: Dismissal on Settled Case is continued to June 26, 2025, at 9:00 a.m. in this Department. Plaintiff to give notice.	Timekeeper	Hourly Rate	Time Claimed	Time Granted	Total	Michael Saeediann	\$695	1.5	0.9	625.5	Christopher Urner	\$525	24.8	16.8	8820	Jorge L. Acosta	\$350	12.1	8.5	2975	Sergio Aivazov	\$300	10.8	9.5	2850	Jorge L. Acosta (law clerk rate)	\$100	0.8	0.7	70	Total				\$15,340.5
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9	Perez v. My Botanica, Inc.	The motion by Defendant My Botanica, Inc., to strike portions of the complaint relating to punitive damages is DENIED. A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. (<i>Turman v. Turning Point of Cent. California, Inc.</i> (2010) 191 Cal.App.4th 53, 63; Cal. Civ. Code § 3294(a).) “Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Code Civ. Proc. § 3294(c)(1).) “Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Code Civ. Code § 3294(c)(2).) “Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Code Civ. Proc. §3294(c)(3).)																																			